A PATRIOT'S CATECHISM

OF THE UNITED STATES CONSTITUTION

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Dedication

This book is dedicated to my children, who like their father, were born free.

To my children, I give you three instructions: Serve your country. Honor God. Resist tyrants.

Preface

Years ago, I wrote what – for me – is the best-selling book of my life. A Baptist Catechism for Family and Home Devotion was a compilation of resources designed to teach families doctrine as found in the Word of God and articulated by my Confession of Faith, the 1689 London Baptist Confession.

That endeavor proved fruitful, as hundreds of churches and many thousands of believers around the world are still using that simple guide to help educate and catechize (teach) their family the Bible.

As a polemicist (one who studies aberrant sub-Christian sects and false teachers), I have grown increasingly convinced that with proper catechism, full-time discernment ministries – like the one I run at Pulpit & Pen – would be wholly unnecessary.

I count myself and Pulpit & Pen as one of the very few full-time polemics or discernment ministries in the world. And yet, I long for the day that churches properly catechize their members, thus inoculating them against most doctrinal error prevalent in modern churches. There is not a single heresy or false teaching that I have yet encountered, that cannot be dispelled and even preempted by good catechesis, which should ideally be accomplished well before a child reaches adulthood.

Catechism, from the Greek κατηχέω, is a method of learning that utilizes question-and-answer methodology. It is a tested, tried, and true way to teach doctrine to believers. If properly grounded in God's word, the vast majority of heretical teachings will simply not be able to lead one away.

With that in mind, I have considered the political landscape in America that is currently overrun with socialism and Marxism, despotism, and a kind of modern liberalism that is effectively little more than a list of things God hates; the shedding of innocent blood, theft of property, and the State's sanctioning of adultery. The Democratic Party's platform is essentially God's Ten Commandments in reverse.

As I survey the political landscape, which places the State itself as God, with abortion made a Holy Sacrament, and the gradual enslavement of humanity to the governmental gods, the reality sets in that most of these ideas would be preempted if our children were properly catechized in the United States Constitution.

Our system of government was created with checks and balances between its various branches, as taken from the division of authorities in the Old Testament as demonstrated between prophets, priests, and kings. Our Bill of Rights was the product of Protestant Reformed thought, as formulated by John Locke and other Reformed philosophers. The American nation is not founded upon the Bible, but it is founded upon ideas

that were forged in the Sacred Texts and extrapolated by Christian theologians.

While the United States Constitution is not Sacred Writ, and should not be included in the canon of 66 Holy Books, and was not inspired of the Holy Spirit, it is demonstrably one of the greatest works ever penned by the hands of men.

Our Constitution is the longest-surviving governmental document in the history of the world, and it is currently under attack like never before. The time to educate our children is now.

I am indebted considerably to the Catechism on the Constitution, written by Arthur Stansbury in 1828, for use in public schools. I found several points of disagreement with Stansbury, which is reflected in the catechism and its answers. Because it was written in 1828, I had to add to the catechism significant portions that were made necessary by the United States Civil War and subsequent amendments to the Constitution.

I pray that we would all heed the words of Stansbury, who wrote in his introduction**, "The virtuous citizen is the true noble. He who enlightens his understanding--controls his passions--feels for his country's honor--rejoices in her prosperity--steps forth to aid her in the hour of danger--devotes to her advancement the fruits of his mind, and consecrates to her cause, his time, his property, and**

his noblest powers, such a man is one of God's nobility... We have seen such men among us; we hope to see many more."

What is at stake for us is nothing less than the loss of Western Civilization, the American nation, and the freedom of mankind.

INTRODUCTION

How to use this catechism guide is very simple. Like with a catechism of the Christian doctrine, take one question per week, and rehearse the question and answer with your children.

Make sure that not only your children have the answers memorized, but that they understand the answers. Take time to explain – through additional resources, if necessary, what the answers mean.

Should your children understand these answers, they will be protected against the vast majority of leftist schemes designed to fleece their pockets, steal their minds, and enslave their consciences.

Remember that if you do not teach your children, someone else will. Some might call the term "indoctrination" (which means "to teach doctrine"). Those who use the term pejoratively, are probably the ones who want to indoctrinate them for you.

A Patriot's Catechism of the United States Constitution

1. Q. In what country do you live?
   A. In the United States of America.

2. Q. Why is this country called the United States of America?
   A. Because it is made up of a number of States which were once separate, but afterwards agreed to unite together for specific purposes.

3. Q. What is meant by "state?"
   A. By "state" is meant any district or country whose people are all under a common government.

4. Q. Had then the different States which united together each a government of its own?
   A. Yes; but they agreed to put themselves all under one general or federal government.

5. Q. Why did they do this?
   A. To accomplish certain tasks easier than could be done alone.

6. Q. Is a governmental framework necessary to every country?
   A. Certainly; with no governmental framework, our property and liberties would be in jeopardy.

7. Q. Cannot all the people of a country govern themselves?
A. No. God instituted government to punish the wicked and reward the good by administering justice.

8. Q. How is this done?
A. Laws are enacted which must be obeyed by all; with disobedience bringing punishment by the government through the exercise of force.

9. Q. Who enacts these laws?
A. In America laws must be legislated; that is, they are passed into law by elected legislatures. Occasionally, men try to pronounce laws that are not passed by such a legislative process.

10. Q. What is such a non legislative government called?
A. This kind of government, one in which laws are made binding without passing a legislatures, is called despotism or tyranny.

11. Q. Why are laws passed by legislatures, and not directly by the people?
A. That is called a Democracy, but America is not a Democracy. We are a Representative Republic, wherein we vote officials into power to legislate on our behalf

12. Q. Why is America not a Democracy?
A. It is impractical for all the people to gather in a single assembly. Likewise, not all people have the moral, mental or spiritual aptitude to directly govern through Democracy.

13. Q. Which of these ways of governing a nation is best?
A. The best government governs the least, while yet protecting life, liberty and property.

14. Q. Why do people obey government?
A. Because the government has the legal means to punish by the forced confiscation of property and the exercising of violence upon those who disobey.

15. Q. Cannot the people resist the government?
A. This has sometimes been done, and is sometimes necessary. There are certain ways to resist governmental power that are legal, and others that are not.

16. Q. Was America always a Republic?
A. No, she was once a collection of colonies.

17. Q. What do you mean by colonies?
A. A colony is a group of citizens of a nation, who settle themselves in a different land under the auspices of their home nation, and hence

continue to be ultimately governed by that home nation.

18. Q. By what nation were the American colonies governed?
A. The colonies that first created the United States by their union were governed by Great Britain.

19. Q. From where did the laws come that governed the colonies from Great Britain?
A. The laws inherited by the colonists came from what is called English Common Law and Social Compact Theory.

20. Q. Were these laws good and wise?
A. Many of them were; and for a time the colonies were blessed by their relationship with Great Britain. But over time, unjust laws were passed upon these colonies which threatened their reasonable liberties and well being.

21. Q. What was the colonies response to these unjust laws?
A. They issued complaints, and for a time reasoned with Great Britain, in an attempt to persuade her to see her error and govern more justly.

22. Q. Did Great Britain heed their complaints and repeal these unjust laws?

A. No, but instead she deployed her navy and army threatening the colonies with confiscation of their wealth and violence toward their persons if their compliance was not forthcoming.

23. Q. And did they obey?
A. No; the people of the colonies consulted with each other what was to be done, and at length took up arms, raised such armies as they could, and though they had few soldiers, no experienced officers, and but little money, they waged war against the whole power of Great Britain, and having (with the aid of France) forced two British armies to lay down their arms and surrender themselves prisoners, culminatedin the compelling of Great Britain to acknowledge their independence.

24. Q. Did the colonists sin against God by rebelling against Great Britain?
A. No, not at all. Great Britain surrendered the colonists as their Citizens when they denied them representation in Parliament. The Colonists were Citizens where they were represented, which was in their colonies. When a government breaks it's own compact with its Citizens, its Citizens are free to find or create new government.

25. Q. When the Citizens of the colonies declared their independence, what was Great Britain's

response?
A. Great Britain continued to confiscate the wealth and commit violence upon the Citizens of the colonies, and thus provoke a state of war.

26. Q. When we speak of this war, what do we call it?
A. We call it the American Revolution.

27. Q. What do you mean by Revolution?
A. A revolution means to revolt with the aim of securing a great change of government.

28. Q. When and where did the war of the revolution begin?
A. At Lexington and Concord, villages near Boston in Massachusetts, on the 19th of April, 1775.

29. Q. How long did the struggle continue?
A. More than seven years.

30. Q. When did it end?
A. On the 21st of January, 1783 when a treaty was signed at Paris acknowledging the independence of the United States.

31. Q. Why is the 4th of July kept with such public rejoicing through all parts of the United States?
A. Because it was on the 4th of July, 1776, that the Colonies first declared themselves free and independent.

32. Q. What was the change produced by the Revolution?
A. The different Colonies became each a free state, having power to govern itself in any way it should think proper.

33. Q. Had not one state any power over the other?
34. A. Legally, each state was an independent, autonomous and sovereign entity.

35. Q. Why did the states decide to create the Union?
A. The states discovered that they could better accomplish several vitally important tasks by working together, creating a general and central government to help the states achieve this cooperation.

36. Q. What approach to government and law did the states first create in order to work together?
A. They drafted the Articles of Confederation.

37. Q. What were the Articles of Confederation?
A. The Articles of Confederation were a broad precursor to what would become the Constitution of the United States.

38. Q. What were the problems with the Articles of Confederation?
A. The problems with the Articles of Confederation were mostly due to their lack of

specificity and the resulting deficiency they provided for governing a nation such as the United States hoped to become.

39. Q. Who makes laws in both the states and in the Union?
A. Laws which concern only one of the states are made by persons chosen by the people of that state by representatives they have selected, called the legislature. Laws which concern all the states or more states than one are made by the Congress of the United States.

40. Q. But if even the Congress itself should enact a law which is contrary to the United States Constitution, must the people obey it?
A. No.

41. Q. Who is to determine whether any law is contrary to the Constitution or not, the people themselves?
A. No; Justices of the Supreme Court of the United States may issue opinions regarding whether or not laws are Constitutional.

42. Q. Was this always a power of reviewing laws granted to the Supreme Court?
A. Absolutely not. This power was gradually gained by the Judiciary through means which are themselves unconstitutional.

43. Q. Do the members of the Congress of the United States all meet together in one assembly when they make the laws?
A. No: they meet in two different assemblies, one of which is called the Senate, and the other is called the House of Representatives.

44. Q. Who chooses the persons who shall be members of the House of Representatives?
A. The people of all the states: because the laws of Congress concern all the states, and must be obeyed by all the people of the Republic.

45. Q. May all people vote to decide who shall represent them?
A. No. Only Citizens of the state who are eighteen years of age or older may vote.

46. Q. Are there any other requirements of voting, besides Citizenry and age?
A. While certain protections were initially made in early America, today the only requirements are citizenship and age, and the ability to prove both through the means of authorized identification.

47. Q. Are there any persons unfit to vote?
A. There may be some, due to general ignorance or laziness, who should not vote. The law, however, allows people to vote so long as they are Citizens who are of age.

48. Q. How is the election conducted?
A. On a publicly announced and scheduled day, the people who are to choose, called voters, meet at various authorized locations called the polls: here, officials are stationed called inspectors, who oversee receptacles called ballot boxes, and each person who votes puts into a hole in the top of these boxes a piece of paper with the names of the persons whom he chooses written or printed on it. These pieces of paper are afterwards examined and counted by the inspectors, who keep a tallied account of the names voted for and the number of votes given by the people of each state. The persons having the greatest number of votes are chosen. Due to technological advances, there are some slight differences in the mode of holding elections in the different states, but it is the same in every important particular.

49. Q. Are the times, places and manner of holding these elections fixed by Congress?
A. No: They have, thus far, been left to be regulated by each state for I tself, but Congress may fix them if it deems appropriate.

50. Q. Suppose a dispute should arise concerning an election, and one person shall declare that he has been fairly chosen, while another denies it, and insists that he himself has been chosen; who has the power to settle that dispute?

A. A dispute between persons who claim a seat in the House of Representatives can be determined only by the House of Representatives; a dispute between persons claiming a seat in the Senate can be settled by the Senate only.

51. Q. When a person is chosen to be a member of the House of Representatives, how long does he continue to hold that seat?
A. For a term of two years.

52. Q. When the two years have expired, may he be chosen again?
A. Yes.

53. Q. Suppose he dies before the end of his term?
A. Another is chosen in his stead, for the remainder of that term. This process varies between state legislatures and also for the federal house.

54. Q. How old must a person be before he can be chosen a Member of the House?
A. Twenty-five years old.

55. Q. May a person be chosen who has just come into the United States, and who is a subject of some other country (that means, who is bound to obey the laws of some other country)?
A. No. Any person, to be chosen a Member of our House of Representatives, must either have been

born in the United States, or must have been a naturalized Citizen for seven years before he is eligible.

56. Q. Naturalized? What does that mean?
A. A person who was born in another country and comes to live in the United States, is not a Citizen until he has lived among us a certain time; and then, has taken a solemn oath to obey the Constitution. He is then admitted as a Citizen of our republic. This process is called naturalization; and once naturalized, he is allowed full Citizen rights including the choosing of rulers, just as if he had been born among us.

57. Q. May the people of one State choose a person who is an inhabitant of another State to be a Member of the House of Representatives?
A. No; he must be a Citizen of the State where he is voting.

58. Q. How many persons may be chosen by each State, as Members of the House of Representatives?
A. The number of Representatives of any state is in proportion to the number of people in that State.

59. Q. Are any people, based upon their ethnicity or any other factor, counted more or less than others when factoring their representation in

Congress?
A. No, all people are treated equally under the Law.

60. Q. How is it known what number of people each State contains?
A. Certain persons are appointed to count the people and compile a written list of them. Such a counting is called a census, and it takes place once every ten years.

61. Q. When the members of the House of Representatives meet to make the laws, are they all equal or does anyone preside over them?
A. They choose one of their own number, whose duty it is to preside over them while they are assembled to do business, and to see that they proceed in a regular and orderly manner in doing their public duty. He is called their Speaker.

62. Q. Who chooses the members of the Senate of the United States?
A. The members of the Senate are chosen by the people, just as are chosen the members of the House of Representatives.

63. Q. Were members of the Senate always chosen this way?
A. No. Members of the Senate were originally chosen by the Legislature of each state.

64. Q. Was making the members of the Senate chosen by the people wise?
A. No. Members of the Senate, known as Senators, were to represent the needs of the state as a whole, not of individuals directly. Making Senators elected in the same manner as Representatives defeated the purpose of a separate body designed to represent the states.

65. Q. How many Senators may there be?
A. Two from each state.

66. Q. When a Citizen is chosen to be a Senator, how long is his term of duty?
A. He shall serve for six years. If he dies before he finishes his duty or resigns his office, another shall be elected in his place.

67. Q. Are all the Senators chosen at the same time, as are members of the House of Representatives?
A. No. Only one third are chosen at a time in two year intervals, so that every two years one third of the number of the Senators see the expiration of their terms; but the same persons may again be chosen if the people wish to reelect them.

68. Q. How old must a person be before he can be nominated for a seat in the United States Senate?
A. Thirty years old.

69. Q. Can he be chosen if he has not been born in the United States?
A. Yes, if he has been a naturalized Citizen for at least nine years.

70. Q. Can a Senator for one State be chosen by the people of another State?
A. No. The people must choose a Citizen of their State.

71. Q. Does the Senate choose a Speaker, as the House of Representatives does?
A. No. The person who is chosen by the people to be Vice President of the United States is made by the Constitution, President of the Senate; his duties are like those of the Speaker of the House of Representatives, except that he is not obliged to keep order in debate.

72. Q. Do the Senators ever sit as Judges?
A. Yes. When any civil officer of the United States (that is, not an officer of the Army) is accused of a violation of his public duty and charged by the House of Representatives, and tried by the Senate. Such a process is called a trial of impeachment.

73. Q. What do you mean by his being tried by the Senate?
A. The Senators take a solemn oath that they will carefully attend to the evidence that shall be

brought before them, and according to that evidence adjudge the accused person innocent or guilty, as the case may be. The House of Representatives appoints some of their own Members to present this evidence before the Senate, and afterwards the accused person presents evidence in his defense; when both have been heard, the members of the Senate vote, that is, each one declares his opinion; and if two thirds of all the Senators who are present declare the accused person to be guilty, a guilty verdict is returned; if not, he is declared not to be guilty of the charges.

74. Q. Cannot the Senate, in like manner, impeach, that is, solemnly charge an officer before the House of Representatives?
A. No. None can bring an impeachment but the House of Representatives, and none can try an impeachment but the Senate.

75. Q. May ever the President of the United states be thus impeached and punished?
A. Yes. No man is above the law.

76. Q. How often does the Congress meet?
A. It must meet at least once in every year; but may meet more often if necessary.

77. Q. Is any day fixed for its meeting?
A. Yes; the first Monday in December; but it has

power to fix an alternate day. When a session of Congress ceases to meet, it is said to adjourn.

78. Q. Why was this date in December originally chosen?
A. The founders did not design or expect Congress to meet for great lengths of time. Because the founders knew that the best government governs the least, they expected Congress to get done with it's business after the harvest, during a few weeks in December.

79. Q. Suppose all members of the Senate, or all members of the House of Representatives do not attend a meeting, can those who do not attend make laws without them?
80. A. If more than one half are present, they have in most cases power to do whatever the whole number could have done. More than one half are called a majority, less than one half are called a minority. As many as are necessary to do business are called a quorum.

81. Q. Supposing less than one half should attend, can they do nothing?
A. Yes, they have power to send for the others and compel them to attend.

82. Q. Who settles what these aforementioned rules shall be?
A. The rules for the Senate are made by the

Senate; the rules for the House of Representatives are made by the House of Representatives. Each house has power to alter its own rules of order, or to suspend them.

83. Q. Suppose a member refuses to attend or behaves in a disorderly manner. What may happen to him?
A. He may be punished in any way the other members think proper.

84. Q. May he even be expelled from the House?
A. Yes, but only by a two thirds vote of all the members.

85. Q. May Congress sit in secret?
A. Yes. Whenever they are engaged in business which would be better done in private, they close their doors.

86. Q. After Congress has met, may either house adjourn for more than three days at a time, without the consent of the other house?
A. No.

87. Q. Do the two houses, that is the Senate and the House of Representatives, meet in the same building?
A. Yes.

88. Q. May either house remove to any other place?
A. No, not unless the other house moves also.

89. Q. Do members of congress receive anything for doing the business of the public?
A. Their best reward is the honor of serving their country; but as many of them cannot afford to leave their own business so often without having the loss in some measure compensated, the Constitution says that they shall be allowed such a compensation to be ascertained by law, and paid out of the Treasury of the United States.

90. Q. Who fixes the rate of compensation, that is, how much the members shall be paid?
A. It is fixed by Congress.

91. Q. Ought they be allowed to fix their own wages?
A. It cannot be avoided, for there is none other power to make laws but Congress.

92. Q. May members of Congress be arrested while they are attending their public duty?
A. Their duties are of such value to us that the Constitution does not allow them to be arrested while going to or returning from their home to the Capitol where Congress meets, except in the cases of treason, felony, or breach of the peace.

93. Q. When is a person guilty of treason?
A. When he makes war against the United States

or provides aid and or comfort to others who are making war against the United States. It is punishable by death.

94. Q. If members of Congress while engaged in a debate, that is, in arguing about any law that is proposed to be made, shall say anything offensive to another member, may he be sued for it by the other in a court of law?
A. No, lest this destroy the freedom of debate and make members afraid to speak their mind. A member cannot be held to account in any other place for anything he says on the floor of Congress.

95. Q. If Congress creates a new office or increases the salary for an existing office, may a member of Congress who participated in this process be then appointed to that office?
A. No, not until the whole time for which he was chosen a member shall have expired.

96. Q. How does Congress proceed in making the laws of the land?
A. A member usually proposes that other select members usually with expertise in the area of the proposed law, called a committee, shall consider his explanation for whether a new law, or change of law concerning a particular issue, warrants further consideration.

If a majority of the members think it will in fact be best to consider the matter, they order certain other members to do so. These members, or committees, meet together, and having considered the proposal, determine whether it is proper to advise the members of the whole House to make a law respecting it. If they do think it is proper, they draft the exact words that they deem best express the intent of the new law. This writing is called a bill.

They return to the House, and either in writing or by word of mouth, declare what they have proposed, and state the reasons for having proposed it. Such a statement is called a "committee's report." The bill is then read twice. The member who first proposed the matter now further proposes (or moves, as it is called) that this bill be considered by all the members. If this is agreed to, the bill is then taken under consideration. Every member has an opportunity to propose alterations; and every member may give reasons why such a bill ought or ought not to be passed into law. If any alterations are made, the Bill as altered is written over again and read a third time. If after full consideration, it is finally agreed to, it has then passed the house.

97. Q. Is it now a law?

A. By no means. The bill thus passed by one body is then sent to the other body. There it is again considered, and, if that body deems proper, is further altered. It is then returned to the body where it began. If this body disapproves of the alterations made by the other, it sends the bill back, that they may abandon the alterations, but if they will not so abandon them, a committee of conference is appointed; that is, certain members are sent from each body to meet together and attempt to bring the matter into a form that can be agreed upon by both the house and the senate. If they succeed, and the bodies agree, the bill is then engrossed (that is, copied) on parchment and signed by the President, the Secretary of the Senate, and by the Speaker and the Clerk of the House of Representatives.

98. Q. Is it now a law?
A. Not yet. The engrossed bill is then sent to the President of the United States for his approbation. If he approves it, he signs and returns it. The bill is then called an act, and it becomes the law of the land.

99. Q. What if he does not approve of it?
A. If he does not approve of it, he must return the bill together with his objections, in writing, to the body in which it began. That body must copy the whole of these objections into their journal, and then consider the bill once more. When they

have done this, if two-thirds of that house shall agree to pass the bill, they must send it, together with the President's objections, to the other body. There the bill must, in like manner, be reconsidered. If two-thirds of this body also agree to pass it, it becomes a law. But in all such cases, the names of all the members of each house who voted for and against the bill must be recorded.

100. Q. Suppose the President of the United States should neglect to sign and return a bill sent to him by Congress?
A. If he does not sign or return any bill within ten days after it is sent to him (not counting Sundays), it becomes a law unless in that time Congress shall have adjourned.

101. Q. Why is making a law so complicated?
A. The more laws a nation has, the less liberty will be protected. The founders designed the process for creating laws to be difficult and rigorous in order to protect the people against tyranny by legislation.

102. Q. You have said that no laws can be made for the United States but by Congress; may Congress make any laws they please?
A. No. Their power is limited by the Constitution. They have no power except that specifically granted them by the Constitution, which was

designed to limit their power. Whatever power is not given to the federal government in the Constitution is reserved for the states and the people.

103. Q. What powers are given to Congress by the Constitution?
A. Congress has the power to collect taxes, duties, imposts and excises.

104. Q. What is a tax?
A. Tax is a sum of money which the people are directed to pay to support the Constitutional functions of government. Tax is the confiscation of wealth by the government, under the threat of coercion, usually threatening confiscation of property or violence to one who does not pay it.

105. Q. What are duties?
A. Duties are sums of money which must be paid by persons who bring goods of any kind from another country into the United States. It is paid at certain places called Customs Houses, and is sent onward to the Treasury of the United States.

106. Q. What are Imposts?
A. Imposts are sums of money which must be paid to the government, by persons owning vessels, which enter the harbors of the United States.

107. Q. What are Excises?
A. Excises are sums of money which must be paid to the government, by persons who make certain articles within the United States, in proportion to the quantity or value of the articles manufactured.

108. Q. What do you mean by levying these, and what by collecting them?
A. Laying a tax is determining how much it should be, and collecting a tax is obliging people to pay it by threat of force.

109. Q. What means of force does our government use to collect taxes?
A. Government uses various means of force, but chiefly the confiscation of property or the violence of imprisonment or some other punishment that will bring harm upon property or body.

110. Q. Is it the duty of a Citizen to pay taxes?
A. It is the duty of a Citizen to pay taxes, so long as it is in keeping with the social compact between the government and the governed.

111. Q. Why is it the duty of a Citizen to pay taxes?
A. First, the Bible – the foundation of Western law and civilization – instructs us to render taxes to the ruling authorities. Secondly, Citizens have the responsibility to rule the nation, and with the

responsibility of ruling, comes the obligation to steward resources, which includes paying taxes.

112. Q. Should all Citizens be required to pay taxes equally?
A. All Citizens should be required to pay taxes in the most equitable way possible, and no Citizen should be exempt from paying taxes so long as any other Citizen is taxed. Fairness requires impartiality, and taxes should be collected impartially.

113. Q. Are all taxes constitutional?
A. No. Sometimes the government abuses its power, and uses taxation as a means to punish its enemies or manipulate the behavior of its Citizens. Often this is done through means other than that provided for by legislation through Congress.

114. Q. What is the most equitable, or fair, form of taxation?
A. The most equitable form of taxation is a tax on consumable goods, which is the same tax for all people who purchase those goods.

115. Q. Why is a tax on consumable goods the most equitable, or fair, form of taxation?
A. A tax on consumable goods treats people indiscriminately, and does not take into account prejudices against the certain classes of people,

which inevitably leads to strife between classes. Likewise, Citizens can choose the amount of taxes they pay, by choosing whether or not to buy those consumable goods. Finally, those who purchase more consumable goods because they have more financial resources, will pay more taxes, because their taxes are in proportion to their consumption.

116. Q. Is a tax on income Constitutional?
A. The income tax was ruled unconstitutional, according to the Supreme Court in 1895. However, the 16th Amendment to our Constitution of 1913 declared the income tax to now be constitutional.

117. Q. Is a tax on income wise?
A. Taxes that penalize income are unwise in a nation that desires to create and sustain wealth. In certain cases, taxing income will cause people to be less industrious, which will diminish both the income of the government and the income of the individual.

118. Q. Is a tax on income moral?
A. Graduated taxes that treat people partially, by taxing different people at different rates, are immoral because they treat people unequally. It is the application of unjust weights and measures, which should be seen as wrong in any morally conscientious society.

119. Q. Is there any other way that a tax may be unjust, aside from partiality?
A. Any wealth that is confiscated to redistribute to others is inherently unjust, and is theft. Likewise, any confiscation of wealth in order to finance governmental powers not granted them by the Constitution is inherently unjust.

120. Q. Could any government exist without taxation?
A. No government has ever existed without taxation, although certain governments have raised revenue through tariffs or trade or by the taxation of colonies by imperialism rather than by direct taxation of its own Citizens.

121. Q. Ought the people complain of having to pay taxes?
A. People ought to complain when taxes are unjust. However, if the benefits of taxation are distributed through the function of government to all classes of people equally, and all people are equal beneficiaries of government services to them (and they include only the services required of the government by the Constitution), then they should not complain about taxation.

122. Q. What are the benefits of taxation?
A. The benefits of taxation include a government that can afford to defend its Citizens against invasions of foreign armies, mint currency,

execute laws, provide certain necessary infrastructure, punish wickedness and reward good.

123 Q. May one part of the United States be required to pay at a greater rate than the rest?
A. No; all duties, imposts, and excises must be uniform throughout all of the United States.

124. Q. What other power does Congress have aside from the levying of taxes?
A. Congress has the power to borrow money on the credit of the United States.

125. Q. What other power does Congress possess?
A. It may make rules according to which the commerce of the citizens of the United States with other nations shall be carried out; also, it can make rules regarding the commerce of one state with another state and with Indian tribes. These are called the Foreign Commerce Clause, the Interstate Commerce Clause, and the Indian Commerce Clause.

126. Q. What is an example of an instance in which the Interstate Commerce Clause is used?
A. The Interstate Commerce Clause gives the Federal Government the power to make laws regarding the use of roadways or navigable waterways that extend from one state into the next.

127. Q. What is an example of an instance in which the Interstate Commerce Clause has been abused?
A. The Interstate Commerce Clause regulates trade between the states, and not the people of those states. Whereas roadways, navigable waterways or other publicly-owned properties may be under the purview of the Interstate Commerce Clause, the clause gives the Federal Government no right to oversee or regulate trade between individual Citizens within the several states.

128. Q. What is another power given to Congress by the Constitution?
A. Admitting a foreigner to become a Citizen of the United States is the power of Congress, which can make one uniform rule that shall be followed throughout the country.

129. Q. What else may Congress do?
A. Congress may mint money, meaning that it shall mark or stamp certain pieces of metal or paper in such a way as it shall make them legal tender at a set monetary value. It may also set one uniform size for weights and measures.

130. Q. May any persons who pleases mint money?
A. No, only the Congress may mint money that is to be considered mandatory legal currency. While states or individuals may maintain

precious metals which may be traded or bartered like any other good, only that issued by the United States congress must be received as currency.

131. Q. May Congress outsource control over currency to any other body?
A. No. The Constitution does not allow Congress to outsource the control of currency to any other body.

132. Q. Are private banks, like that of the Federal Reserve, to be allowed to set monetary policy or print currency?
A. No. Only Congress may set monetary policy and print currency according to the Constitution. To allow this privilege to other bodies, is a dereliction of their duty and places the liberty of the Citizens in the hands of private interest rather than in the hands of their duly elected representatives.

133. Q. What other power belongs to Congress?
A. Congress may establish a postal service or office, locations and instruments for the carrying out of those services and also roads upon which those services may be carried out.

134. Q. What is the post office?
A. An organization with the resources for the gathering and delivery of letters and packages

from one citizen or business to anothe, as a service provided by the government to its Citizens.

135. Q. Does congress protect the personal ideas and inventions of the citizens?
A. Yes, it may grant patents and copyrights.

136. Q. What are patents and copyrights?
A. When a person has composed or invented something new and useful, Congress may give them an exclusive right to produce and sell their composition or invention for a certain number of years; during which time no one else may produce or sell that item, or profit from that idea without due compensation to the person who composed or invented it. Patents are for inventions and copyrights are for ideas.

137. Q. Can Congress erect courts or direct judges?
A. Yes, Congress may appoint as many courts as it deems necessary for the answering of questions and cases relating to matters particularly pertaining to the federal government, or rights acknowledged by the Constitution.

138. Q. Has congress the power to declare war?
A. Yes, it is congress that holds this most solemn and weighty power, that being the declaration of

war between the United States and any other foreign power.

139. Q. When Congress has declared the United States to be at war with any particular nation, can any of the Citizens of the United States remain at peace with that nation.
A. Citizens cannot be forced to violate their conscience. However, Citizens can be obliged under the threat of force to not provide aid or assistance to enemies of the United States, especially during wartime.

140. Q. When the United States has a grievance against another nation, and yet does not wish to go to war with that nation, is there any other measure Congress may take to compel that nation to do them justice?
A. Yes. Congress may issue diplomatic or economic sanctions or punishments upon them.

141. Q. When Congress declares war, may it raise and equip armies and hire soldiers?
A. Congress may pay, equip, clothe, feed and transport soldiers at the public expense.

142. Q. May Congress make a law, setting apart money enough at one time, to pay and support an army for more than two years?
A. No, lest a wicked Congress, by keeping a standing army, remain in power beyond the time

for which they were elected, and so destroy the liberty of their country.

143. Q. Why was the time limited to two years?
A. Because every two years a new Congress may be chosen.

144. Q. Does the Congress have the right to raise and support the army only?
A. No, Congress may raise and support any branch of the armed services.

145. Q. Has the United States no other defense than to depend upon hired soldiers?
A. The country may also have militias raised up among the people to defend the nation.

146. Q. What is a militia?
A. A militia is a group of armed Citizens, who are not within the United States military, but who have chosen to bear arms to protect themselves or others.

147. Q. Does a militia only exist in order to protect the nation against foreign powers?
A. No, a militia may protect the nation against unrest, injustice, or a tyrannical domestic government.

148. Q. May Congress command the militia?

A. The Congress may command the militia, upon the agreement of the militia. A free nation requires a militia that is not beholden to a government that may be or become corrupt.

149. Q. Must a militia be an organized para-military unit?
A. No, a militia is any number of Citizens that are armed and willing to protect the nation. It does not have to be structured like the United States military.

150. Q. How does Congress see to the location and logistics of it's own business?
A. The Congress may enact all laws relating to a geographical location where it's members meet to conduct the business of state and which is also the seat of federal government. Currently, this is Washington D.C. (District of Columbia)

151. Q. Has this district its own legislature like the states have?
A. No.

152. Q. Is the district a part of a state?
A. No, it is a territory the states have relinquished for the purpose of it being the seat of the federal government.

153. Q. Are there any other locations in the United States under similar control by Congress?

A. Yes, and they include all forts, armories, and international docks. These are governed not by the states, but by the Congress.

154. Q. Aside from these, are there any other land or properties in the United States under similar control by Congress?
A. Today, the Federal Government believes it has similar control over "public" land it presumes to be owned by itself. In fact, these are not "federal lands," per se, but are public lands owned by the People. The Constitution allows the Federal Government to own no land other than for forts, armories and international docks, and allows for no monuments or parks to be managed by Congress. They may, however, be owned and stewarded by the States or the People.

155. Q. Are there additional powers conferred by the Constitution upon the Congress of the United States?
A. Congress may make any law which "shall be necessary and proper for carrying into execution the foregoing powers," that is, any law necessary to fulfill the very specific responsibilities given it by the Constitution.

156. Q. Is slavery legal?
A. No, slavery is an affront to God and to civilization, and forbidden by equal application of the Law.

157. Q. Was slavery legal?
A. Yes, slaves were inconsistently treated as property at the founding of our country, while yet in certain instances were in fact counted as people. As more people called for the abolition of slavery, it therefore and unfortunately, became a matter of property rights that brought our nation to war.

158. Q. Doesn't a Citizen have a right to have his property, and to maintain his property without fear of confiscation?
A. Yes, a Citizen has the right to have and maintain his property. However, God did not make men as property to be owned by other men.

159. Q. What made slavery illegal?
A. The Thirteenth Amendment of the Constitution made slavery illegal. However, the fact that all men were not treated equally under the law was a great national sin, for which our country has paid dearly.

160. Q. If slavery was not made illegal until the Thirteenth Amendment, was it wrong for the Union to coerce the states to free their slaves?
A. While slavery is immoral, it was unconstitutional for the Union to coerce the

states to free slaves without first amending the Constitution.

161. Q. Does a state have the right to secede from the Union of States?
A. Yes. States may – constitutionally – join themselves with other states at their will, and their involvement in the union should not be coerced. The Constitution could have stipulated the Union was to be perpetual and irrevocable, but it did not. Furthermore, the founders repeatedly argued that the agreement forming the United States was not forever binding, but only binding by the continued consent of the States.

162. Q. What should the Union do if a State wishes to secede?
A. The Union may try to amend whatever grievance the state has against the Federal Government, or may revoke benefits bestowed to the state on behalf of the Federal Government, to persuade them to stay. To make war upon the States is tyranny and despotism.

163. Q. If an American Citizen is seized and imprisoned, may he be kept there as long as those who arrested him see fit?
A. No; he may obtain a writ of Habeas Corpus.

164. Q. What is Habeas Corpus?

A. It is a command from a court, by which the jailer is forced to allow the prisoner to be brought before a judge that the occasion of his imprisonment may be examined: in order to ensure that there is just and legal cause for detaining him, and if not, that he may immediately be set at liberty.

165. Q. Must this command be given whenever it is applied for?
A. Yes, except under exceptional circumstances, when this privilege is suspended (that is, interrupted for a time, but not taken away).

166. Q. When may this right of having a writ of Habeas Corpus, which belongs by the Constitution to every Citizen, be suspended?
A. Only in cases of rebellion by our own Citizens, or invasion by a foreign enemy; wherein the public danger is so great as to require prisoners who would otherwise be afforded this right, to remain in detention until this exceptional state of great potential danger has passed. As soon as it actually has passed, the right of Habeas Corpus must be immediately restored.

167. Q. Is this a very great and important privilege and ought all Americans to guard it with the greatest care?
A. It is one of the greatest rights of a free man and Americans must never surrender it, under

any pretext, if they value and would preserve their liberty.

168. Q. May a man's children be punished by law for his offense?
A. This must never happen in our country; and is expressly forbidden by the Constitution.

169. Q. May a Citizen of the United States be punished for an action that was not contrary to any law at the time of the action, but does violate a law that was enacted after the time of the action?
A. No. A law that attempts to punish actions that were done before the law was made, is called an "ex-post-facto law." This also is expressly forbidden by the Constitution.

170. Q. When a direct tax is leveyed, that is, when Congress orders that a certain sum of money must be paid by each Citizen, for the public use, what is the rule by which such a tax is to be collected?
A. The rule by which such a tax is to collected is the census, or public counting of the people.

171. Q. May any money be required to be paid on goods exported, that is, delivered from, any of the States?
A. No.

172. Q. May any law be passed giving to the ports of one State preferential treatment over that given to ports of other States?
A. No.

173. Q. In what way can the monies of the United States be drawn from the Treasury?
A. Monies may be withdrawn from the United States Treasury only by authority of a law of Congress and such a law is called an Appropriation.

174. Q. Must a full account be kept of all monies received into the Treasury, and withdrawn from it; and must this account be published, that is, printed and distributed from time to time?
A. Yes.

175. Q. Can any families be distinguished as nobility from the rest of the Citizens of the Republic?
A. No; no title of Nobility can be granted in America. The only titles among us, are those which mark a person's trade in the army or navy, or his office in the State.

176. Q. May any Citizen of the United States receive a title of nobility from the king, or prince, or government of any other country?
A. The government does not interfere with the lives of private persons, but no person holding any office of profit or trust under our Republic

can accept either a title, sum of money as salary, an office, or even a gift, from any foreign throne or government, without the express consent of Congress.

177. Q. When the States agreed to form a voluntary union with the other States and to create the Federal Government, what responsibilities did they delegate to that Federal Government?
A. The States granted to the Federal Government the responsibility to make treaties and alliances with other nations, the right to coin money and to emit bills of credit, and the right to lay duties on exports and imports.

178. Q. May the States keep soldiers whom they pay, in time of peace?
A. No.

179. Q. May they keep ships of war, in time of peace?
A. No.

178. Q. May a single State make a treaty with another nation?
A. No.

179. Q. May a single State declare war?
A. No; not unless an enemy has entered their bounds, or is in such danger of entering, that there is no time to wait for the aid of the Federal Government, or unless the Federal Government

itself has become that enemy that must be defended against.

180. Q. Why did the States delegate these powers to the Federal Government?
A. In order to aid and assist in a more consistent governance among all the people known as Americans.

181. Q. Who executes the laws which Congress has made, that is, who takes the responsibility in seeing that all Citizens shall obey these laws?
A. The President of the United States.

182. Q. Can the President make laws?
A. No, not at all. Those two powers, making law and executing law, are kept by the Constitutions entirely separate; the power that makes the law cannot execute it, and the power that executes the law cannot make it. The powers of lawmaking are called Legislative powers, and powers of law enforcement are called Executive powers.

183. Q. Is there any advantage to this?
A. Certainly; it is the great safeguard of freedom because, if the one makes oppressive laws, the other may refuse to enforce them; or, if the one wishes to play the tyrant, the other may refuse to create laws for them.

184. Q. How does a man become President of the United States?
A. He is elected (chosen) by the people of the United States.

185. Q. How does the process of electing the President work?
A. Every four years, Citizens may vote for a candidate for President and Vice President, who share a "ticket," meaning that they run together as a pair or team. In most states, the candidate who wins the majority of votes in that state wins that state's electoral votes in a "winner take all" process. Maine and Nebraska are exceptions to this convention, awarding two electors to the statewide winner and one to the candidate who wins in each state congressional district.

186. Q. How are electors chosen?
A. This process varies from state to state. Typically, political parties nominate electors at their state conventions. Sometimes the process happens by a vote of the party's central committee. The electors are often state-elected officials, political party leaders, or respected individuals within the party. Comprised together, these electors are called the "Electoral College."

187. Q. Do electors have to vote for their party's candidate?

A. Neither the Constitution nor any federal law forces electors to vote for their party's candidate. However, some states require electors to vote for their party's candidate if the candidate wins a majority of votes from among Citizens of that State. It is exceptionally rare – but not inconceivable – that an elector may vote contrary to the wishes of their party.

188. Q. How many electoral votes must someone have to become President?
A. They must receive the majority of electoral votes, that being 270.

189. Q. What if no one gets a majority of the vote of the Electoral College?
A. If no one receives a majority of electoral votes, then the election is decided by the House of Representatives. In this case, the top three candidates (those with the most votes) would be voted upon by the House, with each state casting one vote and the winner would become the President. The same process would be carried out for the Vice President in the Senate, meaning that it is possible the conjoined ticket would be split between members of two opposing parties.

190. Q. Can a candidate lose the popular vote and still win the Electoral College, making them President?
A. Yes, it has happened on a number of occasions.

191. Q. Should the Electoral College be abolished if it's possible that the candidate with the most popular votes not be elected?
A. No, because the Electoral College ensures that all States – and not just those with large population centers in metropolitan or urban areas – are important to the electoral process. Without the Electoral College, less populous and more rural states would be ignored and not represented. Furthermore, this nation was not set up as a Democracy, but as a Republic, and the Electoral College preserves the spirit and values of a Republic.

192. Q. Who is qualified to be President of the United States?
A. According to the Constitution, only those meeting the qualifications of Citizenship from birth, who are 35 years of age or older, and have actually been continuously residing in the United States for fourteen or more years may be President.

193. Q. How long may one serve as President?
A. A Presidential term is four years, and no person shall be elected to the office more than twice, and no person who had been appointed President (to replace a President who had been previously elected, but unable to serve his full term) for more than two years shall be elected

more than once. In theory it would be possible for someone to serve almost ten years, if they were elected for two additional terms after serving a two year mid term appointment.

194. Q. How is the Vice President chosen?
A. Originally, electors could vote for one of two candidates for President and the candidate with the second highest vote tally would become Vice President. Since the 12th Amendment, however, electors could vote for both President and Vice President separately. Seeing that a states electors always vote for their party's presidential candidate, it is nearly certain that they will vote for the party's vice presidential candidate as well. (see next question)

195. Q. Must electors vote for Presidents and Vice Presidents of the same party?
A. There is nothing in the Constitution or Federal Law that would prevent an elector from voting for a President from one party and a Vice President from another. However, many state election rules dictate that electors vote for a unified "ticket" or "slate" of Presidential and Vice Presidential candidates.

196. Q. Are there any limits on who may serve together as President and Vice President?
A. The Constitution forbids electors from voting for a President and a Vice President from the

same state, for fear that one state may become too powerful in the Union of States.

197. Q. If the President should die, be removed from office, or resign, who shall carry out his duties of office?
A. The Vice President shall carry out his duties of office.

198. Q. If the Vice President, now serving as the President, shall be removed from office or resign, who shall carry out his duties of office?
A. The Speaker of the House shall become the President in this case. If he should die, leave or be removed from office, the Senate president pro tempore shall serve. From there, there is a line of succession to cabinet members including the Secretary of State, Secretary of the Treasury, Secretary of Defense and so on.

199. Q. May the President be paid for serving in his office?
A. The President may receive a salary, as set by Congress.

200. Q. May the President receive money from any foreign government?
A. No, the President may not receive any money from any foreign government or receive any exorbitant gifts or honorariums.

201. Q. May the President receive money from any State government?
A. No, the President may not receive money from any State government, lest he favor one State over another.

202. Q. Does the President take an oath before taking office?
A. Yes.

203. Q. What is the Presidential oath of office?
A. It is these words, *"I do solemnly swear, that I will faithfully execute the office of President of the United States and will, to the best of my ability, preserve, protect, and defend the Constitution of the United States."* By tradition, Presidents have often included at the end, *"So help me God."*

204. Q. What are the powers belonging to the President?
A. He is the Commander in Chief of all the Armed Services; every officer of all branches, from the highest to the lowest, is obliged to obey his orders.

205. Q. Are the officers of the militia obliged to obey them?
A. Officers of the militia are obliged to obey the Commander in Chief, unless such orders are themselves unconstitutional or if he has himself, become an enemy of the United States.

206. Q. Has he any other powers?
A. Yes, he may grant pardons for crimes.

207. Q. What is a pardon?
A. A pardon is the delivering of a condemned person from the consequences or penalty of his offense.

208. Q. May the President do this for all crimes?
A. Yes, although he cannot undo the consequence of impeachment.

209. Q. Does the President possess powers to enter into treaties with other nations?
A. The President may make treaties with other nations on behalf of the United States.

210. Q. Is there any limit to the power of the President to make treaties?
A. The power of making treaties is so great that the Constitution will entrust it to no one man. Even the President cannot make a treaty without the consent of the Senate of the United States; nor is it sufficient that a simple majority of the Senate agree to it; two thirds, that is, a super majority of all the Senators who are present when the vote is taken, must agree to any treaty before it is binding on the United States.

211. Q. Has the President any power over other offices and positions in the federal government?

A. Yes, he has the powers of nomination and appointment.

212. Q. What are the powers of nomination and appointment?
A. When persons are to be employed to perform the duties of certain influential public offices, none can be eligible but those whom the President first nominates; that is, whom he proposes to the Senate, and whom the Senate consents to have so employed: and when the Senate has given this consent, the persons cannot act in their office until they receive orders to do so from the President; such an order is called their appointment, and when put in writing it is called their commission.

213. Q. What sort of officers are appointed in this matter?
A. Ambassadors and foreign Ministers, consuls, judges of the Supreme Court and federal districts, and all other officers of the United States, except those who are expressly ordered by the Constitution to be appointed by some person or body other than the President.

214. Q. May the President appoint any officer without the consent of the Senate?
A. Yes, if Congress makes a law giving him the power to do so.

215. Q. What are the regular duties of the President?
A. The President must from time to time report to Congress concerning the state and affairs of the nation.

216. Q. Does he know what is the state of the nation better than Congress?
A. Yes; his office is such that he is better situated for knowing it. Members of Congress reside in and represent only one State, but the President occupies a position of national authority. It is the duty of all officers below him, to submit reports of the various affairs in which they are employed, to one or other of the Heads of Departments, and these lay all the information and intelligence they thus obtain, before the President as resources to direct and assist him in the many and great duties he has to perform. He is, therefore, of all other persons, best acquainted with the general concerns of the nation.

217. Q. When does he lay this information before Congress?
A. After a first introductory address at the beginning of his term, he makes a full statement of it, usually on an annual basis, when they meet together in a joint session of congress, in what is usually called the President's Speech or "the State of the Union Address." He also submits to each body of congress particular information, as

such information becomes available and relevant.

218. Q. Suppose Congress wishes to know from the President something which he has not told them in his speech or messages, may they call upon him to communicate it?
A. Yes, and if he does not think that the public good requires it to be kept secret, he always answers the call, and gives them the knowledge they requested, if he can do so.

219. Q. Does he do more than communicate information to the Congress?
A. Yes; it is his duty also to recommend to them such actions as he believes will be for the advantage of the nation.

220. Q. Are they obliged to do as he wishes?
A. No. They are to give careful and respectful attention to his recommendations and his reasons for them, but they are at full liberty to follow their own judgment in all cases.

221. Q. Is it desirable that the Congress should always comply with the advice of the President?
222. A. No; for then his advice would, in time, come to have the authority of a command; it would be the President and not Congress who was legislating our laws; and the liberty of the country would be in the greatest danger. There is no more

dangerous despot than one who can enforce his will, and yet preserve the apparent forms of a free government. Augustus Caesar ruled the whole Roman Empire with absolute sway, yet did everything by the resolve of the Senate, giving the appearance that Rome was free.

223. Q. Suppose some very important matter should arise while Congress is adjourned, can the President call them together?
A. Yes. He can call either both houses, or only one. If any law is to be made, both houses are required. if only a treaty or an appointment is to be made, the Senate only need be assembled.

224. Q. If when both Houses are in session, they should find themselves unable to agree about the time at which they will adjourn (that is, cease to meet and go into recess) can the President end their dispute?
A. Yes, by adjourning both Houses.

225. Q. In that case, when are they to reconvene?
A. At any time the President declares, once he has adjourned them.

226. Q. What are the duties required of the President with regard to foreign heads of state?
A. He must receive all ambassadors and foreign ministers; that is, persons sent by other nations

to make treaties with us, or to reside here as representatives of their own government.

227. Q. Has he any great overriding duty?
A. Yes, he has one great, general, and constant duty in which all this power is put at his command, it is to take care that the laws shall be faithfully executed and enforced; that is, that whatever Congress orders shall be done, and that whoever disobeys their laws shall be punished.

228. Q. May he be punished himself?
A. Every civil officer of the United States may be impeached by the House of Representatives, tried before the Senate, and, if found guilty, may be turned out of office. The crimes for which this is done are chiefly treason and bribery. Treason is making war against the United States or providing aid and comfort to her enemies, in an endeavor to resist or overturn the government. Bribery refers to the unlawful receiving of money or assets by an officer of the government, including the President, in return for engaging in and or neglecting some function of his office.

229. Q. Can there be no bribery but by means of money?
A. Yes; bribes may be offered in various forms. Any benefit or advantage received by an officer of the government, including the President, for a

constitutionally improper end is considered a bribe.

230. Q. What are we to understand by a Court?
A. A court is a legal institution wherein a duly constituted Judge sits to hear and determine disputes, or cases according to the law. A courthouse with courtrooms are the locales wherein this usually takes place.

231. Q. Are courts necessary?
A. Certainly. Wherever laws are made and are to be enforced, there must be some mechanism of determining when and by whom they have been disobeyed, and of inflicting punishment upon those who disobey them. This is the use of a Court and of a Judge. When a citizen claims that another citizen has broken the law, either to his own injury, or to the injury of the public, he may compel that person to appear before a Judge and have it determined by witnesses whether the defendant has broken any laws or not. If it is adjudicated that he has, he is forced to suffer such penalties and punishments as the law directs.

232. Q. Are there Courts in every State of the United States?
A. Yes. Each State appoints Judges of its own to see that its state laws are enforced.

233. Q. Are there also other Courts belonging to no particular State but to the United States?
A. Yes.

234. Q. Are all these Courts equal, or is one superior to another?
A. They are not all equal but in each State, some of the State Courts are set over others; and so it is with the Courts of the United States.

235. Q. Why are they not all equal?
A. Some are set over others, in order that if one makes any mistake it may be corrected by the court above it. When a Citizen claims he has been wronged in a lower court, he may take his cause to a higher one; this is called an appeal. If in this higher Court, he still is not satisfied with the ruling, he may appeal to a still higher court , until he has reached the highest Court in his own State.

236. Q. Can he take his cause from the State Courts to the Courts of the United States?
A. No, not unless his complaint is related to a law made by a State, which he supposes to be contrary to the Constitution of the United States. That matter can be settled only by the Supreme Court of the United States.

237. Q. Suppose his complaint is in regard to a law of the United States and not a State law?

A. He must in this case go at once to the Courts of the United States.

238. Q. Which courts are these?
A. They consist of one Supreme Court (the highest of all), and of such lower federal courts, as Congress may from time to time establish.

239. Q. Has Congress established such courts?
A. Yes, it has, which are called Circuit or Appellate Courts of the United Stats; and others, below these, which are called District Courts of the United States.

240. Q. What Judges sit on the Circuit or Appellate Courts of the United States?
A. The thirteen U.S. Appellate courts are presided over by a panel of judges ranging from six to twenty-nine depending on the circuit, though usually a panel of three decides an individual appeal.

241. Q. What Judges sit in the District Courts of the United States?
A. There are 94 federal judicial districts in the United States court system presided over by hundreds of district judges, though each district must have at least one federal judge appointed by the President for life.

242. Q. What kind of cases are tried in the Courts of the United States?
A. A case must be tried in federal court when there is a dispute concerning the true United States constitutionality of a lower courts decision.

243. Q. Are there other cases to be tried in the Courts of the United States?
A. All cases under the federal laws of the United States. A federal court cannot adjudicate a case of state law unless that law itself or the application thereof is itself being challenged as contrary to the Constitution of the United States.

244. Q. Any others?
A. Yes, all which depend upon treaties between the United States and other nations. All in which Ambassadors or other public Ministers, or Consuls, sent to the United States by other governments, are parties concerned. All causes which concern the commandeering or detaining of ships at sea, and all which concern crimes committed at sea, or in harbors, or rivers, or in forts and doc-yards, belonging to the United States.

245. Q. What other cases are tried in the Courts?
A. All disputes in which the United States is a party; all disputes between one State and another State; all in which one of the States files

suit against any person that is the Citizen of another State; all in which one of the States files suit against any person that is the Citizen of another of the States; all in which a Citizen of one State files suit against a Citizen of another State; all in which Citizens of one and the same State lay claim to land under grants of a different State; all in which one of the States files suit against a Citizen of a foreign country; and all in which Citizens of the United States, and Citizens of any other country file suit against each other. But not where Citizens of one State files suit against another State; or where Citizens or subjects of a foreign State file suit against one of the States of the Union.

246. Q. Must all cases of these several kinds be filed in one of the inferior courts of the United States first, or may any of them be commenced at once in the Supreme Court?
A. All cases which have to do with ambassadors, public ministers, and consuls; and all those in which one of the States is a party, may be filed directly to the Supreme Court; the others, after being ajudicated in the inferior Courts of the United States, may be removed to the Supreme Court by an appeal; but this is submitted to the regulation of Congress, who may determine by law when it may be done, and in what manner.

247. Q. How are the Judges of the Courts of the United States appointed?
A. By the President, with the advice and consent of the Senate.

248. Q. How long do they remain in office?
A. A federal presidential judicial appointment is for life or until the justice resigns or is removed by due process for some form of corruption.

249. Q. Why are not Judges elected from time to time, like Members of the House of Representatives and Senators? And why may they not be removed from their offices unless they are proved to be guilty of great offenses?
A. If Judges held their benches at the mere good pleasure of the people, they would be greatly tempted to act in a partial and improper manner in order to please those who elected them to office, and to keep their favor; but when they know that no man or number of men can remove them so long as they do their duty, they are more apt to administer justice without fear and with an equal regard for all who ask it.

250. Q. Why should not Legislators hold their office in the same way?
A. Because they make the laws, while Judges only explain and apply them; it would be very dangerous to liberty to give our law makers power for life; they require restraint lest they

should become our tyrants; therefore their term in office is limited, so that if the people deem them unwise or unfaithful, they may refuse them that office again.

251. Q. How do the Courts determine when laws have been disobeyed and determine their punishment?
A. When a person is charged with having acted illegally to his neighbor, or to the State, whether he is guilty of the charge or not is determined a citizen Jury of his peers.

252. Q. What is a Jury?
A. A jury is a company of Citizens, chosen by lot, and who have no personal interest in the matter, who hear both the evidence brought against the accused, and that for his defense, who through deliberation among themselves seek to agree whether the accusation has been proven beyond a reasonable doubt or not. When they declare this agreement in opinion, it is called their verdict; and according to this, the case is decided.

253. Q. Is this a wise regulation.
A. Certainly. The trial by jury is a most precious privilege as it secures to every man a fair hearing, and is the best safe-guard of his liberty, property and life; all which might be taken from him by a partial or corrupt Judge if that officer

alone were allowed to decide on the guilt or innocence of those who are tried before him.

254. Q. Does a Jury decide in civil suits as well as in criminal prosecutions?
A. Depending on the case, a jury can decide in both.

255. Q. May an accused person be tried in a different State from that where the criminal act was committed?
A. No.

256. Q. Suppose the act was committed at sea, or in some other place not within any one of the States, her territories or possessions. Where is such a trial held?
A. Where Congress shall have appointed by law.

257. Q. Ought all the public acts of a State and its courts and officers be recorded in writing?
A. Certainly; this must be done in order to preserve a remembrance of them and for those affected to show proof of them and if injured, to obtain redress.

258. Q. When such a record is made in one of the states, and a copy of it duly proved and given, must that record be received as proof by all the other States?

A. Yes, but Congress may determine by law in what manner the record shall be proved for that purpose.

259. Q. When a Citizen of one State travels to any other State of the Union, may he be treated as if he were a foreigner? That is, may any difference be made between his privileges and those of the Citizens of that State?
A. No. He shall enjoy every privilege enjoyed by the citizens of that state.

260. Q. If a person charged with a crime in one State, shall flee from justice into the bounds of another State is he safe from pursuit and trial?
A. No. If the Governor of the State where the crime was committed applies to the Governor of the State where he has taken refuge, the latter shall cause him to be delivered to the state in which the offense is alleged. This is called extradition.

261. Q. How many States were there which revolted from Great Britain at the Revolution?
A. Thirteen.

262. Q. Did they all agree to the Federal Constitution at the time it went into operation?
A. Not all, but the rest came in soon after.

263. Q. Was it then expected that other future States would be formed andjoin the Union?
A. Yes, and provision was made for admitting them.

264. Q. By whom were they to be admitted?
A. By Congress.

265. Q. Is their number limited?
A. No.

266. Q. Has any State the right to set up a monarchical form of government for itself, that is a government where the supreme power is in the hands of a king?
A. No. At the time of our nation's founding the colonies were all individual republics. The new government they formed for the union of these republics was itself a representative republican model, which would then be enacted in any additional states which would join this union in the future.

267. Q. Who is to see that this state of affairs is maintained?
A. The Congress.

268. Q. Does Congress secure any privilege to the different States?
A. Yes. It must protect them from attack or invasion by a foreign enemy. This is one of the

most important benefits of our Union; each State has the protection of the whole.

269. Q. The majority of the people of any State may by due process certainly alter its laws, provided they do not violate the Constitution; but may the Constitution itself be altered?
A. Yes. The Constitution being nothing more than an expression of the will of the people of the United States, is at all times within their own power, and they may change it as they see fit, but it ought not to be changed or amended until it is very clearly shown to be the desire of the people.

270. Q. How is an amendment to the Constitution shown to be the will of the people?
A. When two thirds (a super majority) of the members of both the Senate and the House of Representatives shall agree by a vote that an alteration would be proper, they may state such an alteration and propose it to be considered by the people of all the States. The alteration must then be considered by the Legislature of each of the States, or by a Convention in each State (which is a meeting of persons chosen by the people for this particular purpose); and if three fourths of the States agree to the amendment, it then becomes a part of the Constitution.

271. Q. What is the supreme law of the United States?

A. The Constitution itself is supreme; and all laws and treaties made by Congress and the President, in conformity with it, are superior to any law made by one of the States, so that if a law of a State contradicts a law of Congress, the State law is of no force, and the United States law alone must be obeyed.

272. Q. Is there any recourse for the State, if the Courts are misinterpreting the Constitution or if laws are being enforced (or not enforced) despotically or prejudicially?
A. Yes, the Doctrine of the Lesser Magistrate demands that all elected offices – even smaller State or local magistrates – must defend the Constitution of the United States. Within their means and ability, they are able to resist tyranny by keeping their own oath to the Constitution.

273. Q. What is the Doctrine of the Lesser Magistrate?
A. The Doctrine of the Lesser Magistrate teaches that when the superior or higher ranking civil authority makes unconstitutional or immoral policies, the lower or lesser ranking civil authority has both a right and duty to refuse obedience to that superior authority. If necessary, the lesser authorities may even actively resist the higher authority in keeping with their oath of office.

274. Q. What security do we have that the Constitution will be followed?
A. The President, members of Congress, the members of State Legislatures, all public officers of the United States and each of the States takes an oath of office promising to uphold the Constitution. Each branch of government provides a check and balance for the others, and both lesser and greater magistrates check and balance each other.

275. Q. Has the Constitution ever been altered?
A. Yes. Through the itself constitutional amendment process.

276. Q. How many times has the Constitution been amended?
A. There have been twenty seven amendments to the constitution.

277. Q. What is the subject of the First Amendment?
278. A. The subject of the First Amendment is the right to the free practice of religion.

279. Q. What does this mean?
A. This means that every man has the right to observe his religion according to his conscience, without being called to account for his opinions or punished for them by any governing authority, so long as he does not infringe upon the explicit Constitutional rights of others.

280. Q. Is this the same as freedom of worship?
A. In no wise. Freedom of worship is implied in freedom of religion, but freedom of religion is far broader. Worship may be confined to certain times and locations, but a man can observe his religion every day of his life and every place he may go. The right to conscience is a freedom of religion far greater than just the freedom of worship.

281. Q. Is this a sacred right, which ought to be guarded with the greatest care?
A. Certainly. God alone is the Judge of our religious belief and service, and no man has the right to infringe upon it, so long as it does not lead us to infringe upon the Constitutional rights of others.

282. Q. How does the first Constitutional amendment address this subject?
A. Congress is forbidden from making any law respecting the establishment of religion; that is, laws to establishing a particular denomination or religion, or forbidding the free exercise of religious conviction according to individual conscience.

283. Q. May the government or her officials recognize God or any religion?
A. There is no the Constitutional prohibition of

the government as a whole or any member of any governmental office from recognizing deity or religion, so long as they are neither establishing nor hindering religion by law.

284. Q. Was any other subject introduced in this same amendment?
A. Yes; the freedom of speech and the freedom of the press.

285. Q. What do these entail?
A. In a free country under our form of government, every Citizen has the right to express his opinions of the character and conduct of our rulers and the laws they enact. For our government to forbid or punish this, would be extremely dangerous to our liberty.

If officials chosen by their fellow Citizens to rule the State, rule in a foolish or wicked manner, it ought to be made known, that such corrupt officials may be speedily turned out of office. If however the citizens are forbidden to find fault with them without danger of punishment, the wrongful conduct of such officials would never be exposed, and they might continue in power to the great injury of us all. The right to speak our opinions is the freedom of speech; and the right to print them, and publish them for the benefit of others is the freedom of the press.

286. Q. How ought the press be defined?
A. The press is defined as any institution, organization or individual which publishes positions or opinions in or on any medium, whether it be paper, recorded audio or video, or any other electronic format.

287. Q. May the press be in any way disqualified, so as to limit it 's voice or distribution to certain publications or organizations?
A. No, the First Amendment is promised to the People, and anyone wishing to share an idea or opinion may publish it according to the principle of the freedom of the press.

288. Q. May someone be punished if what they speak is injurious to another?
A. Yes, if it can be proven in court that what has been alleged is false and resulting injury is demonstrable, this is called libel. Personal denigration of the character of another if proven true is not libelous and therefor not illegal.

289. Q. If the people shall be of the opinion that any of the acts of their rulers have been corrupt, may they meet together to petition, that is publicly to seek that these acts be addressed?
A. Yes, if they meet peaceably; but if they meet in a riotous or otherwise dangrous manner causing injury to persons or damage to property, then they ought to be prosecuted.

290. Q. May they meet bearing arms?
A. Yes; the right to keep and bear arms is one which belongs to the Citizens at all times; but arms must not be used except to support the rule of law or to defend against an enemy or resist tyranny.

291. Q. Which Amendment secures the right to keep and bear arms?
A. The Second Amendment.

292. Q. To whom does the Second Amendment secure this right?
A. To private Citizens, who comprise a militia.

293. Q. Is a militia the same as an army?
A. No. A militia is comprised of civilians only. The army is comprised of regular soldiers.

294. Q. Who is a member of the militia?
A. All private Citizens comprise the militia.

295. Q. May the Federal Government make any laws regarding the right of Citizens to bear arms?
A. No. Federal Laws regulating the ownership, transport, use or carry of private arms are unconstitutional.

296. Q. What is the primary intent of the Second Amendment?

A. The primary intent of the Second Amendment is to ensure that a well-armed Citizenry can provide the ultimate check and balance against governmental tyranny.

297. Q. What is the Third Amendment?
A. The Third Amendment commands that soldiers may not be quartered In the homes of Citizens without their consent. It places ultimate control of private property in the hands of the Citizenry, rather than in the hands of the government.

298. Q. Does the Third Amendment apply to Civilian Law enforcement?
A. The Third Amendment applies particularly to non-Civilian military personnel. However, no Citizen's private property rights should be infringed upon by another, even by law enforcement.

299. Q. What is the Fourth Amendment?
A. The Fourth Amendment protects Citizens against searches of persons or their property without a legal warrant.

300. Q. What are the requirements in obtaining a warrant in order to legally search a Citizen's person or property?
A. Warrants must be issued by a court, upon evidence of "probable cause" (that a crime has

been committed by the individual) as provided by law enforcement.

301. Q. May warrants be general?
A. No, warrants must specify who is to be searched, what of their property is to be searched, and what in particular is being searched for.

302. Q. How should warrants be delivered to Citizens?
A. Because Citizens are presumed innocent until proven guilty, even if there is probable cause to issue a warrant, warrants should be delivered in a manner consistent with the Citizen's rights.

303. Q. Is the current trend of "no-knock warrants" Constitutional?
A. Only in the most extreme of cases, when there is good and substantial reason to believe that Citizens may be violent or evasive, should law enforcement not be required to announce the warrant and enter private property with great care and respectful diligence.

304. Q. What is the Fifth Amendment?
A. The Fifth Amendment protects our Citizens against an injustice known as double jeopardy. An American Citizen may not be tried for the same offense twice. The fifth amendment also protects defendants from being forced to give

self incriminating testimony during their own trial.

305. Q. What else does the Fifth Amendment provide?
A. The Fifth Amendment also prohibits anyone being deprived of life, liberty or property without due process of law. It also prohibits the taking of private property, even for important public causes, without fair compensation.

306. Q. What does the Sixth Amendment provide?
A. The Sixth Amendment provides a fair and speedy trial to all Citizens accused of violating the law. It also requires a jury trial in the district and state where the alleged crime was committed.

307. Q. What else does the Sixth Amendment provide?
A. The sixth amendment also requires that defendants be given the right to face their accusers, to be informed as to the charges and evidence against them, to present witnesses in their own defense, and to be provided with legal counsel.

308. Q. What is the Seventh Amendment?
A. The Seventh Amendment iterates the right to a trial by jury in civil cases, wherein the value under disputes is higher than twenty dollars.

309. Q. What is the Eighth Amendment?
A. The Eight Amendment prohibits excessive bail from being required in cases where release upon bail while awaiting trial is warranted, and it prohibits cruel or unusual punishments.

310. Q. How might cruel and unusual punishment be properly defined?
A. A cruel or unusual punishment is one that goes beyond fair restitution for crimes, or that which degrades the humanity of the convicted Citizen.

311. Q. What does the Ninth Amendment declare?
A. The Ninth Amendment declares that the Bill of Rights (the first Ten Amendments) does not include all the rights retained by the People.

312. Q. What is the Tenth Amendment?
A. The Tenth Amendment declares that any powers not explicitly delegated to the Federal Government in the Constitution (or prohibited to the States) are reserved either to the States or the People.

313. Q. What is the major implication of the Tenth Amendment?
A. The Tenth Amendment declares that the Constitution is not designed to limit the rights of Citizens or States, but to limit the power of the Federal Government.

314. Q. If a power is not explicitly given to the Federal Government, may the Federal Government usurp such power?
A. No. That would be tyranny.

315. Q. What is the Eleventh Amendment?
A. The Eleventh Amendment declares that Federal Courts can hear cases brought by private Citizens against the States and that the States are not immune from suits brought by Citizens of other States.

316. Q. What is the Twelfth Amendment?
A. The Twelfth Amendment was to revise the manner in which Presidents and Vice Presidents would be chosen in the Electoral College, as previously explained in the questions above treating the election of the Vice President.

317. Q. What is the Thirteenth Amendment?
A. The Thirteenth Amendment abolished and prohibited slavery in all its forms within the United States or its territories.

318. Q. What is the Fourteenth Amendment?
A. The Fourteenth Amendment declares that all naturalized persons under the jurisdiction of the United States are Citizens.

319. Q. Why was the Fourteenth Amendment created?

A. The Fourteenth Amendment was created to iterate that freed slaves, naturalized under the jurisdiction of the United States, were to be considered full Citizens, and that the states must treat them accordingly.

320. Q. What does "naturalized" mean?
A. "Naturalized" refers to one who has met the requirements of Citizenship, but who was not born a Citizen.

321. Q. What are the requirements of being a Citizen from birth?
A. Those who have a parent who is a Citizen of the United States, regardless of the territory in which they are born, are Citizens from birth.

322. Q. Are those who are born inside the boundaries of the United States but whose parents aren't Citizens to be considered Citizens?
A. No. Although current laws are often ignorant of the proper interpretation of this Amendment, those born within our borders whose parents are not Citizens (such as those children belonging to diplomats or non-Citizen legal or illegal immigrants) are not Citizens by birth, and must be naturalized in order to become Citizens.

323. Q. What else does the Fourteenth Amendment require?

A. It requires that the states to treat all Citizens equally under the law.

324. Q. Does the Fourteenth Amendment require the States to treat all people as equal under the law?
A. No. It requires the states to treat all Citizens – born or naturalized – equally under the law. Although all people are created by God and afforded basic human rights, the specific rights enunciated in the Constitution and its amendments are guaranteed to Citizens only.

325. Q. Were the legal procedures prescribed in the Constitution itself, adhered to when ratifying the fourteenth amendment?
A. The passage of the Fourteenth Amendment – as just as its provisions may be – is a stain upon the American system of Constitutional governance. It was not passed by three fourths of the States as required by the Constitution. Only 21 states legally ratified it (it would have required 28), as certain states were under the duress of military occupation and its legislators appointed by foreign governments rather than by an election of the Citizen populous.

326. Q. Should Citizens honor or acknowledge the Fourteenth Amendment to the Constitution?
A. While the content of the Fourteenth Amendment is just and fair, no amendment should be acknowledged unless it is

Constitutionally ratified, regardless of how long it has been seen to have been in force. It should be properly ratified by duly elected representatives of the People.

327, Q. What is the Fifteenth Amendment?
A. The Fifteenth Amendment guarantees the right to vote irrespective of race, color or position of servitude.

328. Q. What is the Sixteenth Amendment?
A. The Sixteenth Amendment allows the Federal Government to tax personal and private income, and did away with the requirement that taxes would be levied through a census only.

329. Q. Was the Sixteenth Amendment properly ratified?
A. There have been legitimate questions about the Constitutionality of the Sixteenth Amendment, but they have typically been rejected.

330. Q. Is the Sixteenth Amendment a "good" amendment?
A. No. In fact, an income tax that is progressive (in which the tax rate adjusts for income) is in violation of the equal protection clause of the Fourteenth Amendment, assuming that amendment's viability. It is illogical that they can both be simultaneously enforced. Whereas there

is a legitimate argument to be made in favor of a government right to tax goods, it is a dubious position that the government has the right to tax income.

331. Q. Is their an inherent flaw in a tax upon income?
A. The inherent flaw of income tax is that it does not treat all people equally, whereas a tax on goods does treat all people equally. An income tax allows for tyranny, as the government can choose to punish some people with higher taxes and reward others with lower taxes. It allows the government to use taxation as a weapon or a bribe upon its own Citizens.

332. Q. What is the Seventeenth Amendment?
A. The Seventeenth Amendment provided that a seat in the Senate would be won by public election as is the case with a seat in the House of Representatives.

333. Q. Is their a flaw in the Seventeenth Amendment?
A. The founders designed the House of Representatives to be the House of the People, popularly elected and promoting the welfare of the People. However, Senators were to promote the welfare of the State as a whole, which may differ from the welfare of individual citizens of that State. The popular election of Senators undermines this system of Republican government put in place by the founders.

334. Q. What is the Eighteenth Amendment?
A. The Eighteenth Amendment was a prohibition upon the sale of intoxicating beverages.

335. Q. What was the inherent flaw of the Eighteenth Amendment?
A. There are several. But first, enforcing the prohibition of alcohol is beyond the scope of the federal government, and laws should not be made that cannot be duly enforced. Secondly, the prohibition of alcohol is an infringement upon individual liberty.

336. Q. What is the Nineteenth Amendment?
A. The Nineteenth Amendment provided Woman's suffrage. That is, the right of women to vote.

337. Q. What is the Twentieth Amendment?
A. The Twentieth Amendment set the commencement of a Presidential and Vice Presidential term for noon on the January 20th following the election and for Senators and Representatives on January 3rd.

338. Q. What is the Twenty First Amendment?
A. The Twenty First Amendment repealed the Eighteenth Amendment, thus allowing the sale of intoxicating beverages.

339. Q. What is the Twenty Second Amendment?
A. The Twenty Second Amendment limits the President to two terms, or if they serve more than two years of an appointed term, to no more than one and a half terms. (see above)

340. Q. What is the Twenty-Third Amendment?
A. The 23rd Amendment gives residents of the District of Columbia the right to vote for representatives in the Electoral College.

341. Q. What is the twenty fourth Amendment?
A. The twenty fourth Amendment eliminated a "poll tax" which required payment in order for a Citizen to vote.

342. Q. What is the Twenty Fifth Amendment?
A. The Twenty Fifth Amendment allows for the Vice President to become President if the President is unable to fulfill the duties of his office.

343. Q. What is the Twenty Sixth Amendment?
A. The Twenty Sixth Amendment made the age a Citizen can vote to be 18 years.

344. Q. What is the Twenty Seventh Amendment?
A. The Twenty Seventh Amendment stipulates that an increase in salary for Senators or Representatives cannot take effect during the term in which the increase was passed.

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